

24AVCV01641 24AVCV01641

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-07-30

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Case Number: 24AVCV01641 Hearing Date: July 30, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

ARMANDO ERNESTO VASQUEZ,

Plaintiff,

v.

LANCASTER SCHOOL DISTRICT, a public entity, ROBERT MOODY, an individual, and DOES 1 through 10, inclusive,

Defendants.

Case Number 24AVCV01641

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 30, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a personal injury and property damage case arising from a motor vehicle accident.

On December 13, 2024, Plaintiff Armando Ernesto Vasquez (Plaintiff) filed a complaint against Defendants Lancaster School District (LSD) and Robert Moody (Moody) (together Defendants), asserting causes of action for motor vehicle injury and general negligence. Plaintiff alleges that on July 10, 2024, Plaintiff was driving his truck when Moody, in the course and scope of his employment with LSD, drove at a speed in excess of the posted speed limit and struck Plaintiff's truck, causing physical injury and other damages, including a traumatic brain injury. (Compl., General Negligence Attachment.)

On January 16, 2025, Defendants jointly filed an answer.

On June 25, 2026, Plaintiff's counsel Dana Taschner and Anthony J. Crawford (together Counsel) filed the present motion to be relieved as counsel.

This motion is unopposed.

II. Legal Standard

Standard for Motion to be Relieved as Counsel – The Court has discretion to permit an attorney to withdraw from representation, and such a motion should be granted if there is no undue prejudice to the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

California Rules of Court, rule 3.1362 prescribes the following requirements of a movant seeking to be relieved as counsel: (1) The notice of motion and motion must be directed to the client using form MC-051 ("Notice of Motion and Motion to Be Relieved as Counsel-Civil"); (2) The motion must be accompanied by a declaration using form MC-052 ("Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil") and "must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."; (3) A proposed order must be lodged with the court along with the moving papers and must use form MC-053 ("Order Granting Attorney's Motion to Be Relieved as Counsel-Civil") and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order."; (4) "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case" either by personal service, electronic service, or by mail.

(Cal. Rules of Court, rule 3.1362(a) – (e).)

"If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either: (A) the service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." (Cal. Rules of Court, rule 3.1362(d)(1).) "[C]urrent' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned...is not, by itself, sufficient to demonstrate that the address is current." (Id at rule 3.1362(d).)

III. Discussion

Application – Counsel moves to be relieved as Plaintiff's counsel due to a conflict of interest which gives rise to a professional obligation and mandatory duty to withdraw. (Motion, p. 2:7-9.)

Counsel has not satisfied the procedural requirements of Rule 3.1362. Counsel has not submitted the motion using the proper forms (MC-051, -052, -053) has not specified all upcoming hearing dates, and has not submitted a declaration stating that Plaintiff's service address is his current residence or business address and that the address was confirmed within 30 days, or that the address to which the notice was mailed is Plaintiff's last known residential address and establishing that Counsel has been unable to locate a more current address after making reasonable efforts to do so.

Accordingly, Counsel's motion is CONTINUED, and counsel is ordered to remedy these defects and file an updated motion no later than 10 days before the hearing on the matter.

IV. Conclusion

Plaintiff's counsel Dana Taschner and Anthony J. Crawford's Motion to Be Relieved as Counsel is CONTINUED to August 27, 2026 at 8:30 a.m. for Counsel to remedy the procedural defects in the moving papers.